BETTENCOURT v NORCAL GOLD dba RE/MAX GOLD, et al

23CV47084

DEFENDANTS' MOTION FOR JUDGMENT ON THE PLEADINGS

This matter involves a residential real estate dispute between Plaintiff Darren Bettencourt ("Plaintiff") and Defendants Norcal Gold, Inc. dba Re/Max Gold ("Gold"), Traci Hatt ("Hatt"), Kirk Kercielich ("Kercielich"), Arlene Vierra ("Vierra"), Anne Almeida ("Almeida") and Powerhouse Realty ("Powerhouse").

Now before the Court is a motion for judgment on the pleadings ("MJOP") brought by Vierra, Almeida, and Powerhouse (collectively "Moving Defendants.")

I. Factual and Procedural Background

Powerhouse is a licensed real estate broker. (FAC ¶ 4.) Vierra is employed by Powerhouse.

Plaintiff contracted with Vierra and Powerhouse to list his family dairy and 501 acres of land. (FAC ¶ 5.) After that sale, Vierra assisted Plaintiff in making a 1031 exchange for real property located at 271 Calypso Beach Drive in Copperopolis, California ("Property") (*Ibid*.) Plaintiff, upon the advice of Moving Defendants, purchased the Property on December 31, 2021, for $795,000.00. Plaintiff alleges that Moving Defendants made "clear and unambiguous promises to act in good faith and honestly represent" Plaintiff in the purchase of the Property. (FAC ¶ 23.) Plaintiff alleges he relied on those representations in purchasing the Property. (*Ibid*.)

Between December 2022 and February 2023, the Property suffered significant water damage to the basement due to a failure to stabilize the soil and prepare the foundation. (FAC ¶ 25.) The cost to Plaintiff to remedy the failure is over $146,000.00. (*Id*. ¶ 26.)

II. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v.*

Northop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id*.) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc.§ 438(d).)

III. Legal Discussion

A. Breach of Fiduciary Duty

The elements of a cause of action for breach of fiduciary duty are: 1) the existence of a fiduciary duty; 2) a breach of the fiduciary duty; and 3) resulting damage. (*Pellegrini v. Weiss*, 165 Cal. App. 4th 515, 524 (2008).)

Defendant does not dispute the existence of a fiduciary duty, nor the resulting damage, but rather argues that the FAC fails to set forth facts showing a breach of the duty by Moving Defendants. Here, the FAC clearly articulates a duty on the behalf of the Moving Defendants to "learn the material facts that may affect the principal's decision…determining the type of information required…and disclosing to him all reasonably obtainable material information." (FAC ¶ 2.) And while the FAC insinuates that somehow Moving Defendants breached this duty, there are no factual allegations of any actions (or omissions) which would constitute a breach of this duty. The only allegation of breach relates to the sellers of the home who failed to disclose water damage.

At the demurrer stage, Plaintiff need not allege facts with specificity but must allege some facts which would place the Moving Defendants on notice of the allegations against them.[1]

Accordingly, the demurrer to the cause of action for breach of fiduciary duty is granted, with leave to amend.

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[1] Moving Defendants reliance on *Dowling v. Zimmerman*, 85 Cal. App. 4th 1400, 1422 (2001) is unpersuasive. This case involved a claim of fraud which requires pleading with specificity. The instant claim is one for breach of fiduciary duty.

B. Promissory Estoppel

"The elements of a promissory estoppel claim are '(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.'" (*Aceves v. U.S. Bank, N.A.*, (2011) 192 Cal. App. 4th 218, 226 (2011), quoting *Adv. Choices, Inc. v. State Dept. of Health Servs.*, (2010), 182 Cal. App. 4th 1661, 1672.)

Plaintiff alleges that Moving Defendants made a promise to "act in good faith and honestly represent" Plaintiff. (FAC ¶ 29.) This conclusory and vague allegation is insufficient because promissory estoppel requires that the promise be "clear and unambiguous" in its terms. (*Laks v. Coast Fed. Sav. & Loan Assn.* (1976) 60 Cal.App.3d 885, 893.) Here, there are no factual allegations at all about the terms of the promise, let alone ones that are clear and unambiguous.

Accordingly, the MJOP on the cause of action for promissory estoppel is granted, with leave to amend.

C. Implied Covenant of Good Faith and Fair Dealing

The elements for breach of the implied covenant of good faith and fair dealing are: (1) existence of a contract between plaintiff and defendant; (2) plaintiff performed his contractual obligations or was excused from performing them; (3) the conditions requiring defendant's performance had occurred; (4) the defendant unfairly interfered with the plaintiff's right to receive the benefits of the contract; and (5) the plaintiff was harmed by the defendant's conduct. (*Merced Irr. Dist. v. County of Mariposa* (E.D. Cal. 2013) 941 F.Supp.2d 1237, 1280 [discussing California law].) To allege a breach of the implied covenant, however, the claim must be for something "beyond breach of the contractual duty itself." (*Careau & Co. v. Security Pacific Business Credit, Inc,.* (1990) 222 Cal. App. 3d 1371, 1394.)

A prerequisite to any claim for breach of an implied covenant is the existence of a contract. (*Smith v. City and County of San Francisco* (1990) 225 Cal.App.3d 38, 48-49.) Here, there is no allegation that a contract existed between Plaintiff and Moving Defendants, nor what the terms of that contract were.

Accordingly, the MJOP on the cause of action for breach of implied covenants is granted, with leave to amend.

IV. Conclusion.

Moving Defendants' motion for judgment on the pleadings is **GRANTED**, with twenty (20) days leave to amend.

The clerk shall provide notice of this ruling to the parties forthwith. Moving defendants to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

ROOFLINE, INC., v SPERRY, et al

24CV47576

CROSS-COMPLAINANT'S MOTION TO PERMIT SERVICE BY PUBLICATION ON CROSS-DEFENDANT JON WAYNE JOCHIMS

This matter involves a breach of contract dispute brought by Roofline, Inc. ("Plaintiff") and United Home Specialist Co. dba Kangaroof ("United"), Rodney Sperry ("Sperry"), Merchants Bonding Company (Mutual) ("Merchants") and Platte River Insurance Company ("Platte")[2] (collectively "Defendants").

On August 23, 2024, Plaintiff filed suit against Defendants. On September 26, 2024, Merchants filed a cross-complaint against Roofline, Patricia Kleinhart ("Kleinhart") and American Builders and Contractors ("American.")

On November 19, 2024, default was entered against United.

On November 18, 2025, Perry filed a cross-complaint against United, Jon Wayne Jochims ("Jochims"), Claudia Susana Rivas ("Rivas") and Tracy Emery Smith ("Smith.") On February 6, 2026, Perry filed a motion to serve Jochims by publication, which motion was denied for failure to comply with local rules of Court. At the March 4, 2026, case management conference, the Court noted that Jochim had still not been served and ordered Perry to effectuate service on or before the next CMC on May 27, 2026.

The motion for service by publication is unopposed.

I. Legal Standard

Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. (*Dill v. Berquist Construction Co*. (1994) 24 Cal.App.4th 1426, 1439.) For service within the state, "[a] summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served." (Code Civ. Proc. § 415.10.) Alternatively, if the summons and complaint cannot with reasonable diligence be personally delivered, a plaintiff may effectuate substitute

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[2] Platte was dismissed with prejudice on October 25, 2024.